# Parshas Shoftim

*The Judge Within: Din, Death, and Returning to Life*

*Shoftim · Elul · Techiyas HaMeisim · Cheshbon HaNefesh*

## I. Rosh Chodesh Elul and Parshas Shoftim

Today is Rosh Chodesh Elul, and this Shabbos is Parshas Shoftim. There is something about this combination that feels fitting in a way that goes deeper than the calendar. Elul is a month of self-reflection, of looking carefully at what is happening inside us even while so much is happening around us, and right at the beginning of that road toward Rosh Hashanah and Yom Kippur, the parsha we are reading is one that deals entirely with judgment, justice, and what it means to hold something to a proper standard.

The parsha opens:

שֹׁפְטִים וְשֹׁטְרִים תִּתֶּן לְךָ בְּכָל שְׁעָרֶיךָ... וְשָׁפְטוּ אֶת הָעָם מִשְׁפַּט צֶדֶק

*"You shall appoint judges and officers for yourself in all of your gates, and they shall judge the people with righteous judgment."*

*— Devarim 16:18*

This is a parsha that deals heavily with law, courts, judges, witnesses, standards of evidence, punishment, and the question of what justice actually looks like in practice. What does it mean to be righteous? What does it mean to be upright? What does it mean to judge another human being properly? And as Elul opens, those questions have a very particular resonance, because during Elul, in a real sense, we each have to become a judge of ourselves.

## II. What Makes a Proper Judge

The Torah does not simply tell us to appoint judges. It tells us what kind of judges they need to be. A judge cannot distort justice. A judge cannot show favoritism. A judge cannot accept a bribe:

לֹא תַטֶּה מִשְׁפָּט לֹא תַכִּיר פָּנִים וְלֹא תִקַּח שֹׁחַד

*"You shall not pervert judgment, you shall not show favoritism, and you shall not accept a bribe."*

*— Devarim 16:19*

These are not small details. A judge might believe himself to be completely objective. He might think, I already know what the right ruling is. Nothing is going to change that. But halacha treats bribery as something far more subtle than simply accepting money in exchange for a favorable ruling. Even if the judge was already leaning toward the exact ruling the other party wanted, accepting something from one of the parties compromises the process. Something else has now entered the judgment. There is now another influence. And that matters, because a proper din has to emerge from the case itself, from the evidence, from halacha, from truth, and not from some external pressure pulling the judge in a particular direction.

The parsha continues from there into the laws of witnesses. Who is a kosher eid? Who may testify and who may not? What happens when witnesses conspire against another person, attempting to use the entire system of justice itself as a weapon against somebody else? The Torah addresses that directly in the laws of eidim zomemim:

וַעֲשִׂיתֶם לוֹ כַּאֲשֶׁר זָמַם לַעֲשׂוֹת לְאָחִיו

*"You do to him as he plotted to do to his brother."*

*— Devarim 19:19*

The judicial system demands accountability from those who attempt to corrupt it. And from there, the parsha moves into territory that becomes even more serious: the question of who can be found chayav misah. Who can actually be sentenced to death according to halacha.

## III. Death Is a Large Word

Death. That is an enormous word. We sometimes speak about the punishments of the Torah very casually, because we are reading them as halachic categories. Chayav this, chayav that, misah, malkus, korban. But death is not merely another legal category. Death is one of the largest realities that human beings have to confront. And even within the Torah's legal system, a death sentence is not something simple. There must be two kosher witnesses. There must be proper hasra'ah, warning the person before the act. The Torah builds enormous safeguards into the process precisely because of the gravity of what is being decided.

And once we begin speaking about death, another question naturally arises. What happens afterward? Someone asked me this recently: what does halacha say about what happens after we die? What do the sefarim teach about this? And one of the basic answers

is that we do not believe death is our ending. What we experience day to day in this world is not the entirety of our existence. We use our experiences in this world for what comes afterward. Death is real. We do not minimize it. We do not pretend it does not hurt. But we also do not believe that the moment a person dies, that person's existence simply disappears.

## IV. The Haftarah: Why Fear Mortal Man?

The Haftarah this week speaks directly to this. It begins:

אָנֹכִי אָנֹכִי הוּא מְנַחֲמְכֶם מִי אַתְּ וַתִּירְאִי מֵאֱנוֹשׁ יָמוּת וּמִבֶּן אָדָם חָצִיר יִנָּתֵן

*"I, I am the One who comforts you. Who are you that you should fear mortal man who will die, and a human being who will be made like grass?"*

*— Yeshayahu 51:12*

Hashem is the One who consoles us. And the Navi asks: what exactly are you so afraid of? Human beings die. Mortality is real. But if Hashem is the One who gives life, and Hashem is the One who consoles, and Hashem is the One who ultimately controls what comes after this life, then death itself cannot be the final word. Why should we live with an overwhelming fear of dying, when we understand that Hashem is going to bring us back? When we live a life of tzedek, when we understand the standards of the shofet and the requirements placed upon us, what ultimately do we have to fear?

On Rosh Hashanah we speak constantly about life. Zochreinu l'chaim. Kosveinu b'sefer hachaim. We want life. We ask for life. We treasure life. And at the same time, Judaism does not define existence only by whether the body is presently alive. There is Olam HaBa. There is Techiyas HaMeisim. There is a future in which death itself is not final.

## V. Elul and Az Yashir

This brings us into something beautiful and perhaps unexpected about Elul itself. Elul has many famous roshei teivos. The one most familiar to us is:

אֲנִי לְדוֹדִי וְדוֹדִי לִי

*"I am to my beloved, and my beloved is to me."*

*— Shir HaShirim 6:3*

But there is another remez for Elul, one that appears in Shiras HaYam. The specific words are:

אָשִׁירָה לַה' וַיֹּאמְרוּ לֵאמֹר

*"I will sing to Hashem... and they said, saying."*

The roshei teivos of those four words, aleph, lamed, vav, lamed, can be rearranged to spell aleph-lamed-vav-lamed: Elul. And they appear in the context of:

אָז יָשִׁיר מֹשֶׁה וּבְנֵי יִשְׂרָאֵל

*"Then Moshe and Bnei Yisrael will sing."*
*— Shemos 15:1*

Chazal notice something in the language. The pasuk does not say that Moshe sang. It says yashir, he will sing. Future tense. The Gemara in Sanhedrin brings this as a remez to Techiyas HaMeisim min haTorah. Moshe will sing again. There will be another song. Moshe Rabbeinu is not finished. And tucked inside that very Shirah is the remez to Elul itself. A month we associate with teshuvah, cheshbon hanefesh, Rosh Hashanah, Yom Kippur, fear, din, and judgment, also carries sitting inside of it a remez to Techiyas HaMeisim. That changes how we understand what Elul is asking of us.

## VI. Applying the Shofet Standard to Ourselves

During Elul, in a very real sense, I also have to become a shofet. I have to judge myself. I have to look at what I have done over the past year. I have to look at where I succeeded and where I failed. What I said, what I did, what I wanted, what I avoided, what I should have done differently.

But if I am going to be a proper judge of myself, I should learn from what the Torah says a judge is supposed to be. A judge does not begin with the verdict. A judge does not say, I already know this person is terrible, now let me find evidence to support that conclusion. A proper judge examines what actually happened. What were the circumstances? What was the evidence? What else was going on? Was there something influencing the process?

That becomes crucial when we speak about cheshbon hanefesh. There is a tremendous difference between a healthy cheshbon hanefesh and simply destroying yourself. Self-hatred is not teshuvah. Beating yourself up endlessly is not honesty. There can be an internal courtroom where the verdict was already decided before the trial ever began. I am terrible. I always fail. I ruined everything. I will never change. That is not necessarily honest judgment. Sometimes that is simply another form of distortion, another bribe that the ego or the shame or the fear has placed inside the process.

My two eidim in the cheshbon hanefesh, in a sense, can be my yetzer tov and my yetzer hara. I can look honestly at what happened. I can ask questions. I can also judge myself with zechus in the process. I did this. What were the circumstances surrounding it? What was going on inside me? Was I tired, angry, embarrassed, frightened? Was I trying to impress someone? And most importantly: what can I do differently next time? That is a real cheshbon hanefesh. Honest enough to say I did something wrong. Healthy enough to ask what to do now.

## VII. Mechayeh Meisim

The point is not merely to pronounce death upon the person I used to be. The point is to become alive again. That is teshuvah. Teshuvah means return. Returning to Hashem. Returning to who I am supposed to be. And Hashem Himself is described every day in Shemoneh Esrei as:

אַתָּה גִּבּוֹר לְעוֹלָם ה׳ מְחַיֵּה מֵתִים אַתָּה רַב לְהוֹשִׁיעַ

*"You are eternally mighty, Hashem. You give life to the dead. You are abundantly able to save."*

We say it every single day. Mechayeh meisim. Hashem brings life back. And even before Techiyas HaMeisim in its fullest literal sense, the language of life and death appears throughout Chazal in ways that describe the spiritual and emotional condition of a person. Sleep is described as one sixtieth of death. Every night we become almost completely disconnected from the world. Then we wake. Life returns. We say Modeh Ani. We wash our hands. We get up again.

And there are people who are technically alive, walking around, going to work, eating, speaking, but internally they feel almost dead. Crushed. Numb. Trapped. Chazal speak very harshly about anger and compare certain forms of it to avodah zarah. A person can become so disconnected from the things that actually make him alive that he is barely living. And then comes teshuvah. Teshuvah says: you can return. You do not have to remain where you are. You do not have to say, this is who I am now, so this is who I will always be. Hashem is Mechayeh Meisim. Hashem brings life back. And that changes how we think about the judgment of Elul. Din does not have to mean destruction. A proper din shows me where something has gone wrong so I can repair it. If I find something dead inside myself, something I stopped caring about, something holy I abandoned, then the question is not, look how terrible I am. The question is: how do I bring this back to life?

## VIII. Tzedakah and Bringing Others Back to Life

We say in Unesaneh Tokef:

וּתְשׁוּבָה וּתְפִלָּה וּצְדָקָה מַעֲבִירִין אֶת רֹעַ הַגְּזֵרָה

*"Teshuvah, tefillah, and tzedakah avert the severity of the decree."*

Tzedakah is also deeply connected to life. Chazal teach that an ani, a poor person, is considered like one who is dead. Not because the person is literally dead, but because poverty can crush a person's life. It strips away independence. It strips away dignity. It strips away possibility. It leaves someone feeling trapped and helpless. So when I give tzedakah, I am not merely moving money from one account to another. I may actually be helping restore life to somebody.

And the highest level of tzedakah is not simply handing somebody money repeatedly. It is helping that person become able to support himself. Helping somebody find work. Helping somebody establish a livelihood. Helping somebody build the ability to stand on his own. That is not sustaining a person for today. That is helping bring someone back into life. So there is Techiyas HaMeisim in the great eschatological sense, something we believe in as a fundamental principle of Judaism. And there are also moments in this world when we have the opportunity to help bring life back into places where life has almost disappeared. Sometimes that is within ourselves. Sometimes it is within somebody else.

## IX. The King Is in the Field

All of this is happening during Elul. HaMelech baSadeh. The King has come out. Hashem is accessible. We have the opportunity to approach, to speak, to reach out, to come closer. That does not mean Hashem is absent the rest of the year. But Elul gives us a particular opportunity to become conscious of that closeness.

And time itself is one of the great tools Hashem gives us. There is never enough of it. We always wish we had more. More time before Shabbos, more time before Rosh Hashanah, more time to fix something. But right now we have Elul. We have this month. So instead of only worrying about the fact that time runs out, we can use the time that exists. I am here. Hashem has given me another day, another Rosh Chodesh Elul. I can judge myself

honestly. I can make changes. I can do teshuvah. I can daven. I can give tzedakah. I can bring something inside myself back to life. I can help somebody else come back to life.

And I can remember that even actual death itself is not the final word. Az yashir Moshe. Moshe will sing again. Ashirah laHashem va'yomru leimor. Elul. And ultimately there will be Techiyas HaMeisim. So as we enter this month, may we give ourselves a true din, a mishpat tzedek, not a distorted one, not one corrupted by shame or anger or fear from outside the case. An honest judgment that allows us to see what needs to change and then actually do something about it.

And hopefully this year, when we reach Rosh Hashanah and Yom Kippur, we will not simply be crowding into our batei midrash and our shuls. We should be crowding into the Beis HaMikdash. We should see Mashiach. We should see the Kohen Gadol performing the avodah. There is so much life still available to us. There is so much that can still be brought back. May we use this Elul properly, and with that, a good Shabbos.

**חזק ואחזק**

*Good Shabbos · Chodesh Tov*

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## Reflection Questions

- *What kind of shofet am I being to myself this Elul? Am I examining the evidence honestly, or have I already decided the verdict before the trial began?*
- *Where has shame, anger, or fear entered my cheshbon hanefesh as a bribe, pulling my internal judgment in a direction that is not actually honest?*
- *What is something inside me that feels dead, something I stopped caring about or abandoned this year? What would it look like to begin bringing that back to life?*
- *Chazal compare the poor person to one who is dead. Who in my life might I help bring back to life this Elul, not just with money but with dignity, with possibility, with a path forward?*
- *Az yashir Moshe: Moshe will sing again. What is the song that feels unfinished in my own life? What would it take to return to it?*
- *HaMelech baSadeh: the King is in the field this month, more accessible than usual. What would I say to Hashem right now if I believed, truly believed, that He is right here?*